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File No.: EXP202211000

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 23, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202211000 (PS/00239/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 04/08/22, Mr. B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against Mr. A.A.A., with NIF: ***NIF.1, owner of the website <http://electrotecniabaltasar.com> (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and against Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states that he has sent his data to the responsible party of the website <http://electrotecniabaltasar.com>, using the only available form (the budget request form). He points out that the page lacks a privacy policy.

SECOND: On 19/10/22, in accordance with the provisions of Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to report, within one month, on what was stated in the complaint.

THIRD: On 04/11/22, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint filed, in accordance with Article 65 of the LOPDGDD, upon finding possible rational indications of a violation of the rules within the scope of the competencies of the Spanish Agency for Data Protection.

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FOURTH: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of the GDPR and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following:

- The website <http://electrotecniabaltasar.com> contains a form to request a budget in which the following personal data is requested: Name, email, and phone number. It also includes a free text field.
- There is no information regarding the processing of personal data or the rights of the data subjects, nor is there information about the identity of the owner of the website.
- On 13/03/23, the data inspection requested information from the respondent regarding the facts previously stated.
- On 24/03/23, a written response to the information request was received in which the respondent stated the following:
 - o The portal <http://electrotecniabaltasar.com> lacked the corresponding legal texts. The reason for this

was that the page was developed with the aim of boosting the web position. However, it was out of use and in the process of construction, redesign, and optimization. Although this process has been postponed due to its lack of use, as the professional activity is carried out physically.

- o Services for data protection consulting have been contracted with a specialist entity in the field, which has designed a work plan aimed at implementing and adapting the activity carried out to data protection regulations. A certificate of contracting data protection services is provided, specifying the actions to be carried out.

- o Currently, the web portal has been updated to comply with data protection regulations.

- On 17/04/23, this Agency accessed the website <http://electrotecniabaltasar.com> again, verifying the following aspects:

- o It contains a form to request a budget in which the following personal data is requested: Name, email, and phone number. It also includes a free text field.

- o Below this form, the following text has been included: "Basic information on data protection.- In accordance with the GDPR and the LOPDGDD, A.A.A. will process the data provided for the purpose of managing and addressing your budget request. For more information about the processing of your data and to exercise your rights, visit

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our privacy policy. I UNDERSTAND AND ACCEPT the processing of my data as described above and explained in more detail in the Privacy Policy." Additionally, a "check" has been included to accept the privacy policy.

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A link to the Privacy Policy has been included at the bottom of the website, which includes:

Identification and contact details of the data controller; Purposes of the processing of your personal data; retention periods or criteria for data retention; Automated decisions and profiling; Recipients; International data transfers; Rights of the data subjects; modifications and updates to the Privacy Policy.

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A link to the Legal Notice and the Cookie Policy has been included at the bottom of the website.

LEGAL GROUNDS

I.-

Competence:

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure, by virtue of the powers granted to each Control Authority by Article 58.2 of the GDPR, and as established in Articles 47, 64.2, and 68.1 of the LOPDGDD.

II.-1

Regarding the processing of personal data on the website and the "Privacy Policy"

During the verification carried out on the website <http://electrotecniabaltasar.com> on 13/03/23, it was found that there is a form to request a quote in which the following personal data is requested: Name, email, and phone number. It also includes a free text field, but there is no information regarding the processing of personal data or the rights of the data subjects. There was also no information about the identity of the website owner.

On the same day, 13/03/23, information was requested from the respondent regarding these facts, and on 24/03/23, a written response to the information request was received in which the respondent acknowledged the lack of information on the website and informed that they have proceeded to regularize the situation.

In the verification carried out by this Agency on 17/04/23 of the website

<http://electrotecniabaltasar.com>, it was confirmed that the situation of the page had been regularized, including information about the Privacy Policy, Legal Notice, and Cookie Policy. Additionally, the form

that collects personal data includes information and a “check” to accept the Privacy Policy.

II.-2

Possible administrative infringement

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Article 13 of the GDPR details the information that must be provided to the data subject when data is collected directly from them, establishing the following:

“1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the following information at the time of obtaining the data: a) the identity and contact details of the controller and, where applicable, of their representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing; d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or a third party; e) the recipients or categories of recipients of the personal data, where applicable; f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, a reference to the appropriate or suitable safeguards and the means to obtain a copy of them or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the data subject, at the time of obtaining the personal data, with the following information necessary to ensure fair and transparent processing of data: a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period; b) the existence of the right to request from the data controller access to personal data relating to the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability; c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal; d) the right to lodge a complaint with a supervisory authority; e) whether the provision of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of failing to provide such data; f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.”

Therefore, the lack of information in accordance with current regulations regarding the processing of personal data when personal data is obtained from website users could constitute a violation of Article 13 of the GDPR.

II.-3

Proposal and grading of the sanction

This infringement may be sanctioned with a fine of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual worldwide turnover.

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total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5.b) of the GDPR.

In this regard, Article 74.a) of the LOPDGDD, concerning minor infringements, indicates that:

Minor infringements are considered to be those that are merely formal violations of the articles

mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the

following:

a) The failure to comply with the principle of transparency of information or the right to information of the data subject by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

The determination of the sanction to be imposed in this case requires observing the provisions of Articles 83.1 and 2 of the GDPR, which respectively state the following:

“1. Each supervisory authority shall ensure that the imposition of administrative fines under this Article for the infringements of this Regulation referred to in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account: a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage and detriment suffered; b) the intentionality or negligence in the infringement; c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects; d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32; e) any previous infringement committed by the controller or processor; f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement; g) the categories of personal data affected by the infringement; h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent; i) when the measures referred to in Article 58, paragraph 2, have previously been ordered against the controller or processor in relation to the same matter, the compliance with such measures; j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

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Within this section, the LOPDGDD provides in its article 76, titled "Sanctions and corrective measures":

“1. The sanctions provided for in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account: a) The ongoing nature of the infringement. b) The connection of the infringer's activity with the processing of personal data. c) The benefits obtained as a result of the commission of the infringement. d) The possibility that the conduct of the affected party may have induced the commission of the infringement. e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity. f) The impact on the rights of minors. g) Having, when not mandatory, a data protection officer. h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

3. It will be possible, additionally or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in article 83.2 of Regulation (EU) 2016/679.”

In accordance with the transcribed provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the fine to be imposed on the claimed entity, an initial assessment considers the following factors as mitigating:

- The claimed party spontaneously acknowledges their guilt and has diligently regularized the irregular

situation (paragraph c).

Considering the factors presented, the assessment of the fine for the infringement of article 5.1.a) of the GDPR is 500 euros (five hundred euros).

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

TO INITIATE: SANCTIONING PROCEDURE against Mr. A.A.A., with NIF: ***NIF.1, holder of the website <http://electrotecniabaltasar.com> for infringement of article 13 of the GDPR, due to the deficiencies observed in their "Privacy Policy" during the verification carried out on 13/03/23.

TO APPOINT: as Instructor R.R.R., and Secretary, if applicable, S.S.S., indicating that either of them may be recused, if applicable, in accordance with the provisions of articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

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INCORPORATE: into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

THAT: for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 500 euros (five hundred euros), for the infringement of Article 13 of the GDPR, without prejudice to what results from the instruction of this file.

NOTIFY: this agreement to initiate the sanctioning file to Mr. A.A.A., granting him a hearing period of ten working days to formulate allegations and present the evidence he deems appropriate.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, he may acknowledge his responsibility within the period granted for formulating allegations to this initiation agreement; which will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 100 euros. With the application of this reduction, the sanction would be set at 400 euros, resolving the procedure with the imposition of this sanction. Likewise, he may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount, equivalent in this case to 100 euros. With the application of this reduction, the sanction would be set at 400 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 300 euros (three hundred euros).

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If the option is taken to proceed with the voluntary payment of any of the amounts indicated above, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which he is adhering. Likewise, he must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. Once this period has elapsed, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On June 28, 2023, the respondent has proceeded to pay the sanction in the amount of 300 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure.

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Common of the Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which will be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of the procedure EXP202211000, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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